

Rajeev Mohan Saxena v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 10 May 2023 · 2023:AHC:100595-DB · Writ - C No. 15865 of 2023 · **Disposed; fresh assessment must follow the Supply Code**

HEADNOTE

A recovery citation of Rs. 2,54,185 for alleged theft of electricity was withdrawn, and a fresh provisional assessment was pending. The writ was disposed of with liberty to the respondents to pass the final order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

The petitioner, Rajeev Mohan Saxena, challenged a recovery citation dated 16 September 2022 issued by respondent no. 2, demanding Rs. 2,54,185 for alleged theft of electricity. At the hearing, the brief holder for the Electricity Department told the Division Bench that the impugned recovery had been withdrawn. A fresh notice of provisional assessment had already been issued to the petitioner, fixing 8 June 2023, with a final assessment order to be passed after he was heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::procedure

Fresh order after withdrawal of a theft-recovery citation

HOLDING

Where the Electricity Department withdraws a recovery citation issued for alleged theft of electricity and a fresh provisional assessment is already pending, the writ is disposed of with liberty to pass the final order strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 3

FLAG The order invokes the U.P. Electricity Supply Code, 2005 without numbering a clause.

PRINCIPLE TAGS

UP-2005::procedure The withdrawn theft-recovery citation was not adjudicated. The Bench left the respondents to pass the pending final assessment only by the procedure prescribed in the U.P. Electricity Supply Code, 2005. ¶ 3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS LIABLE FOR THEFT OF ELECTRICITY IN THE SUM OF RS. 2,54,185

The impugned recovery citation was withdrawn. Final assessment was left to follow the hearing fixed on the fresh provisional assessment. ¶ 1-3